

HOUSE No. 1034

The Commonwealth of Massachusetts

PRESENTED BY:

David M. Rogers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act restricting distribution of single-use plastic straws.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 1034

By Representative Rogers of Cambridge, a petition (accompanied by bill, House, No. 1034) of David M. Rogers relative to restricting distribution of single-use plastic straws. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 887 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act restricting distribution of single-use plastic straws.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 140 of the General Laws, as appearing in the 2020 Official Edition, is hereby
2 amended by inserting after section 6B the following section:—

3 Section 6C. (a) As used in this section the following terms shall, unless the context
4 clearly requires otherwise, have the following meanings:—

5 “Food establishment”, an operation that stores, prepares, packages, serves, vends, or
6 otherwise provides food for human consumption, including but not limited to any establishment
7 requiring a permit to operate in accordance with the State Food Code.

8 “Single-use plastic straw”, a single-use, disposable tube made predominantly of plastic
9 derived from either petroleum or a biologically based polymer, such as corn or other plant

sources, used to transfer a beverage from a container to the mouth of the person drinking the beverage. “Single-use plastic straw” shall not include a straw made from non-plastic materials, including, but not limited to, paper, pasta, sugar cane, wood, or bamboo.

(b) A food establishment shall not provide a single-use plastic straw to a customer unless requested by the customer.

(c) The relevant licensing authority applicable to the food establishment may enforce the provisions of this section for a first violation of this section by providing a written warning and for a second or subsequent violation a fine of \$25 for each day food establishment is in violation, but not to exceed \$300 annually.